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TRANSCRIPT OF PROCEEDINGS

No. 2023/3361
No. 2023/3363
No. 2023/4494

ADMINISTRATIVE APPEALS TRIBUNAL

DEPUTY PRESIDENT MISCHIN

No. 3361 of 2023
No. 3363 of 2023
No. 4494 of 2023

VIDA REID, SIMON REID and
FORWARD FOCUSED GROUP PTY LTD

and

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION

PERTH REGISTRY

11.00 AM WEDNESDAY 15 MAY 2023

MR J RAFTOS with MR MONKS appears for the Applicants
MR YOUNG appears for the Respondent

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DEPUTY PRESIDENT: Thank you, Madam Associate, and good morning, everyone. I'll take appearances. Mr Raftos, you're representing the applicants again, are you?

MR J RAFTOS: Yes, that's correct, sir.

DEPUTY PRESIDENT: And you are instructed by Mr Monks, who is present.

MR RAFTOS: Yes.

DEPUTY PRESIDENT: And I think we have Simon and Vida Reid also present in the background, is that correct?

MR RAFTOS: That's correct.

MR S REID: Yes, it is.

DEPUTY PRESIDENT: Right. And for the respondent, Mr Young?

MR YOUNG: Yes, Deputy President. I appear for the respondent.

DEPUTY PRESIDENT: And I believe that there's a Mr Guliman from the agency as well?

MR GULIMAN: Yes, Deputy President.

DEPUTY PRESIDENT: Yes, all right. Okay, at the conclusion of our last episode you were all going to discuss some way forward with this, and I've received this morning some proposed directions from the applicants. Have you had an opportunity to peruse those, Mr Young?

MR YOUNG: I have, Deputy President just now. They look fine. The only, sort of, query that I have is just in relation to direction 3. And just seeking clarification from the applicant just in the light of Mr Mennan's report which was provided to the tribunal last night. Just what's intended by that direction 3, whether it's at this stage Vida is able to attend a hearing, or just – I just wanted some clarity around that, the direction. But otherwise what's proposed – sorry, I'm doing this on the fly a little bit. Late August – sort of direction 1 as well where it's saying: 'Final hearing no later than late August,' I would suggest it either be in late August or September, a hearing. I just need to be able to confer with counsel who's briefed with the commission, her availability.

DEPUTY PRESIDENT: All right, I will get back to you on this and I'd like to hear from Mr Raftos on it as well because my only concerns about directing a final hearing at a particular time is that for one reason or another it

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may not be achievable, it's a worthy aim. And I can understand a desire to have it pushed along, but I'm not sure it's something that I can direct without knowing that the parties are going to be ready. And direction 2, about providing unavailable dates, that presumes that we're only talking about counsel and not witnesses.

MR YOUNG: Witnesses.

DEPUTY PRESIDENT: And I don't know what the parties consider to be matters that will need to be the subject of witness evidence, as opposed to the papers. And I don't know whether the parties know that. So I'd like to tease out a few of these features just to find out whether or not what is being proposed is doable. I mean ordinarily I would have thought that we look at hearing certificates and after witness availability has been ascertained and that being done after, you know whether or not you're going to be calling any witnesses and who they might be. And at the moment I don't think we've got a statement of facts, issues and contentions, let alone a bundle of evidence that's been agreed. Mr Raftos, how do you see this operating?

MR RAFTOS: I think, Deputy President, paragraph – I'll just go through paragraph 1 and 3 and then I'll come back to some of those issues. Paragraph one I think should be just slightly amended – 'The parties are to proceed to a final hearing' – and it should say: 'not before late August'.

DEPUTY PRESIDENT: All right. Okay.

MR RAFTOS: Paragraph 3, I think that also needs to be slightly amended. It needs to include Ms Reid's matter and also the FFG matter be stayed if she's unwell. My instructions are – whilst Ms Reid is unwell, we think that at the moment her health is such that she could be able to start preparing. But obviously it is a concern, and if we get medical evidence saying that she's just too unwell to proceed to a hearing, then we would obviously have to apply to the tribunal about. Apologies, that's my phone. I'll just turn that off.

DEPUTY PRESIDENT: Your phone? It sounds like a frog.

MR RAFTOS: Yes, apologies. Deputy President, so obviously we'd bring to the tribunal's attention – as we did last week – that Ms Reid has a health issue which may be such that she can't proceed at the ultimate date, but we can't say definitively today, but we flag that we don't want to be accused of down the track bringing this out of the field.

DEPUTY PRESIDENT: No.

MR RAFTOS: In terms - - -

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DEPUTY PRESIDENT: Yes, go on, sorry.

MR RAFTOS: In terms of whether those dates are workable, unfortunately I suppose that always the risk of any matter that witnesses may not be particularly available in August or – sorry, may not be available at a particular time but it is not before August, so we are looking at – what are we – three months down the track. And I would have thought that would be sufficient time to ascertain if the witnesses who aren't available and that alternative arrangements could be made for those.

DEPUTY PRESIDENT: All right, well, look just on that subject – now that you are not proposing something no later than late August, but – because direction 2, or draft direction 2, is talking about unavailable dates between the 14th of August, i.e. mid-August, and September. So you're looking at late August there as well. So the two of them need to be tweaked.

MR RAFTOS: Look, I think so.

DEPUTY PRESIDENT: The detail aside for a moment, I'm keen that the matter be resolved and that it be done so at the earliest available opportunity. But help me out here. At the moment we have three applications with banning orders that have been made by the respondent that you seek to have lifted or ameliorated. There have been some quite detailed reasons provided by the respondent as the bases for those orders. You've been acting for – you and your instructor have been acting for all three applicants since the beginning. And with Ms Reid – I presume you were instructed in respect of the criminal matters as well.

The original idea was that all three of these matters be joined and run together and that any evidence in one hearing be considered – or in one matter – be considered as the subject of relevance as evidence and the others as a matter of convenience and for the saving of cost. And so that there's not a duplication of effort in respect of these matters. And that seemed sensible and that was acceded to by the applicants. We had a question of a stay of proceedings pending the outcome of Ms Reid's criminal matters. And in respect of that, the applicants Simon Reid and FFG wanted to press on rather than have their proceedings stayed. So there seem to be a sufficient commonality of interests and proceedings in respect of those that they wanted to push on while Vida's was stayed.

That seems to now have changed and Vida and FFG want to – well at least last week – wanted to have their proceedings done separately. So that raises an interesting question as to why there should be that difference at this stage. But we'll leave that aside for a moment because it may not end up being material. You have an understanding of the issues. Presumably by now the applicant – based on the evidence that we have with the T documents and the like – is in a position to say what it is that they say is wrong with these orders

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and what their case is – their respective cases are. That does not seem to me to involve a great deal of personal application on the part of any of your clients. There's been quite considerable time where you've understood what their cases are and how they're going to be mounted.

But there is the question of course whether there's any further evidence that you propose to lead in respect of these, or whether it can be dealt with on the papers that are currently before the tribunal. Now once we can ascertain that, we can get statements of material facts from each of your clients and a response from the respondent and then be in a position, I would have thought, to know which – who needs to leave what evidence and what can be agreed to be accepted on the papers. It may be that you want to cross-examine certain witnesses that you want – that you would expect the respondent to call. We don't know that yet until we know what the issues are and what is taken as read and subject to perhaps weight or relevance and the availability of witnesses.

So it's a little difficult to set trial dates. Now I'm happy with the idea of not before the end of August, that's fine. But what I would like to know is how we're going to provide unavailable dates before we know what the issues are and whether they're delineated. So can you help us out there so that we know whether or not this is achievable? As for the question of whether or not Vida Reid and FFG proceed at the same time, because subject to illness – well, firstly, there didn't seem to be a problem with FFG proceeding before the criminal charges were discontinued. Secondly, I think rather than being the subject of a direction it ought to be more properly a matter for an adjournment application of her matter, should that issue arise, and supported by appropriate evidence as to her condition and when she would be able to be available.

Now, I noted – and I know that I'm saying a lot in this regard, but I'd like these matters to be clarified – I noted from the report that was provided that Mr Mennan had said that her attending the AAT would put her at risk. Well, in a sense, she's in attendance today and was last week. What's meant by attendance? Does it mean by giving evidence? Being subject to cross-examination? Surely it can't be a matter of giving instructions to you should – for the preparation of the matter. So a lot can be done without her specific involvement but with – based on the material that you had available and that you are familiar with, and what she's already instructed you on. So there's a lot that can be done. And if she doesn't need to give evidence, then there's no – the risk to her is sufficiently reduced.

But, anyway, perhaps you can help me out with this and we can settle some orders that are achievable and everyone knows what to expect.

MR RAFTOS: (Indistinct) Deputy President.

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MR YOUNG: Deputy President – sorry, Mr Raftos.

MR RAFTOS: No, (indistinct) you - - -

DEPUTY PRESIDENT: Okay, well, look let's – perhaps for the purposes of transcription or the recording, and everything, if you can say who you are before you speak. Mr Oliver (sic), you were going to say something, and Mr Raftos has deferred to you.

MR YOUNG: Thank you, Mr Raftos and Deputy President. Look, in light of what both Mr Raftos has said – and also yourself, Deputy President – I wonder then whether in terms of directions that can be made today, that the proposed direction 4, 5, 6 and 7, that they are the directions that are made and we also just slot in, in amongst those four, a direction in terms of the filing of hearing certificates by the parties, which will then address that issue, Deputy President, that you've raised in terms of who's – or who needs to be called, what their availability is and when then a hearing date may be set. But it would seem to me that the first three proposed direction aren't required. I think on the third proposed direction, I think that's just a matter if it arises that the applicant's obviously at liberty just to apply to the tribunal with respect to Vida's application if required.

It seems to me today – to sort of give some structure and way forward for the matter – that 4, 5, 6 and 7 could be directions that are made, and as I say, in amongst those four there's a direction in relation to the filing by the parties of the hearing certificates.

DEPUTY PRESIDENT: Yes. Mr Raftos, that seems reasonable. At least everyone will know what their respective cases are and be able to meet them. And we can add that perhaps within 12 weeks of today's date the parties exchange and file hearing certificates as to availability. That will give a whole week to marshal witness and make sure that people are available and it fits within the timetable, I think, that you were originally proposing. So anyway, please, it's your turn to say what you have to say about what I've canvassed.

MR RAFTOS: Thank you, Deputy President. Just two points. The first one is very short. Yes, we agree with Mr Oliver's proposal. So that's short and sweet. The second issue, if I may, just in case it becomes an issue down the track, Vida's matter and the FFG matter were the ones that were agreed to be stayed. And Mr Monks is nodding. And the second – just, as I say, it's maybe a moot point, but we do say there is – there isn't a huge amount of commonality between one, Vida and FFG matters and, two, Mr Reid's matter. But that may not become relevant – it may do so down the track, (indistinct). But the shorthand is, yes, we agree to that.

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DEPUTY PRESIDENT: All right, well look, I do recall – and thank you for correcting me if I've got it wrong – that I think that certainly some early submissions were saying that FFG and Simon push on while Vida's matters are paused. But that may have changed at some point. But, anyway, it's academic for the purposes of this timetable and the orders that – the directions that need to be made today. But thank you for that. So what I'll do – and, look – and I can accept that, you know, things may go off the rails and there may be a tweaking of the timetable necessary – but if I direct today then that by no later than 5 June – which is three weeks from today, if my calculations and my calendar are correct – the respondent file with the tribunal and serve upon the applicants an updated tender bundle.

I pause there just for some clarification. Mr Raftos, does there need to be a separate tender bundle served in respect of each of the applicants, or will one suffice?

MR RAFTOS: Separate, Deputy President, if we could.

DEPUTY PRESIDENT: Okay. By no later than 26 June – which I think is six weeks from today – the applicant is to file with the tribunal and serve upon the respondent a statement of facts, issues and contentions and any further evidence upon which the applicants proposed to rely at the hearing. Now you speak of the applicant in the draft. There's three applicants technically. And you say that there are differences between their cases. I'll leave it to your judgment and common sense, Mr Raftos, as to how that's framed. Whether there is a single document covering the matters that are in common with separate chapters for each of the applicants, or whether you file separate documents for each of them.

But something that would facilitate the consideration of the matter, or the several matters, would be of assistance. But I have confidence that you'll decide on an appropriate way of going about that. I will direct that within nine weeks – or by no later, I should say, than 17 July 2024, the respondent is to file with the tribunal and serve on each applicant a statement of facts, issues and contentions and any further evidence that the respondent – upon which the respondent intends to rely at a hearing. And, again, Mr Young, I'll defer to your judgment and common sense as to the best way of answering whatever is filed by the applicants to try to make it as easy to refer to as possible.

MR YOUNG: Yes, Deputy President.

DEPUTY PRESIDENT: In respect of each of the applications. And I accept that that will depend on just the form that the applicants' documents take. And, lastly, I'll direct that by no later than 31 July 2024 the applicant have leave to file – and I leave it as, 'leave' or 'may file' – because may choose not to – file any response to – the applicants are to file any response to the

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respondent's statements of facts, issues and contentions. And by then, no later than – let's see – 7 August, it's a week later – the parties file with the tribunal and exchange hearing certificates giving their availability for a hearing in September through to December, just to be on the safe side.

And once we've got those, the tribunal will be able to see whether there is available dates at the earliest opportunity to dispose of the matters. Also, what I would have in mind – and I don't make it the subject of a direction – but what I would have in mind is that after the hearing certificates are filed, I will consider whether or not another directions hearing – short one – be called in order to make sure that everything's on track and nothing further is necessary. And we will proceed on the basis that all three applications will be dealt with and heard together, subject of course to applications for sound reasons for an adjournment. Is that satisfactory, everyone?

MR YOUNG: It's Mr Young, Deputy President. That sounds fine, thank you.

DEPUTY PRESIDENT: Mr Raftos, is that achievable?

MR RAFTOS: (Indistinct), yes. Yes, at this stage I think it is. Thank you, Deputy President.

DEPUTY PRESIDENT: Okay. Is there anything else that we can usefully deal with today?

MR YOUNG: Nothing from me, Deputy President, thank you.

MR RAFTOS: And nothing from the applicants.

DEPUTY PRESIDENT: Good, okay. Well, thank you very much for your assistance then, and of course you know that, you know, if an issue does arise then you've got the liberty to raise it and we can resolve it. All right, well on that note I bid you a good day and thank you very much for your collective assistance, and we'll adjourn.

MR RAFTOS: Thank you.

MR YOUNG: Thank you.

MATTER ADJOURNED **[11.27 AM]**

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